

Ross on Crime

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Concert

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Concert

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[3.5100] Definition

In [McAuliffe v The Queen \(1995\) 183 CLR 108; 79 A Crim R 229; 130 ALR 26](#) the court said in a joint judgment (at 113; 29–30; 232):

The doctrine of common purpose applies where a venture is undertaken by more than one person acting in concert in pursuit of a common criminal design. Such a venture may be described as a joint criminal enterprise. Those terms – common purpose, common design, concert, joint criminal enterprise – are used more or less interchangeably to invoke the doctrine which provides a means, often an additional means, of establishing the complicity of a secondary party in the commission of a crime.

In [Chan Wing-Siu v The Queen \[1985\] AC 168; \[1984\] 3 All ER 877; \(1984\) 80 Cr App R 117 \(PC\)](#) Sir Robin Cooke, giving the advice of the Board, said (at 175; 880; 121):

[A] person acting in concert with the primary offender may become a party to the crime, whether or not present at the time of its commission, by activities variously described as aiding, abetting, counselling, inciting or procuring it. In the typical case in that class, the same or the same type of offence is actually intended by all the parties acting in concert.

[3.5105] Acting in concert

In *Osland v The Queen* (1998) 197 CLR 316; 159 ALR 170 McHugh J who was the only judge in the majority who dealt with this point said (at 350; 195–196 [93]):

Where the parties are acting as the result of an arrangement or understanding, there is nothing contrary to the objects of the criminal law in making the parties liable for each other's acts and the case for doing so is even stronger when they are at the scene together. If any of those acting in concert but not being the actual perpetrator has the relevant mens rea, it does not seem wrong in principle or as a matter of policy to hold that person liable as a principal in the first degree. Once the parties have agreed to do the acts which constitute the actus reus of the offence and are present acting in concert when the acts are committed, the criminal liability of each should depend upon the existence or non-existence of mens rea or upon their having a lawful justification for the acts, not upon the criminal liability of the actual perpetrator. So even if the actual perpetrator of the acts is acquitted, there is no reason in principle why others acting in concert cannot be convicted of the principal offence. They are responsible for the acts (because they have agreed to them being done) and they have the mens rea which is necessary to complete the commission of the crime.

(See also Gaudron and Gummow JJ at [27].)

In *R v Tangye* (1997) 92 A Crim R 545 (NSW CCA) Hunt CJ at CL said (at 556–557):

The Crown needs to rely upon a straightforward joint criminal enterprise only where – as in the present case – it cannot establish beyond reasonable doubt that the accused was the person who physically committed the offence charged. It needs to rely upon the extended concept of joint criminal enterprise, based upon common purpose, only where the offence charged is not the same as the enterprise agreed. This Court has been making that point for years, and it is a pity that in many trials no heed is taken of what has been said.

So far as a straightforward joint criminal enterprise is concerned, the jury should be directed along these lines:

- (1) The law is that, where two or more persons carry out a joint criminal enterprise, each is responsible for the acts of the other or others in carrying out that enterprise. The Crown must establish both the existence of that joint criminal enterprise and the participation in it by the accused.
- (2) A joint criminal enterprise exists where two or more persons reach an understanding or arrangement amounting to an agreement between them that they will commit a crime. The understanding or arrangement need not be express, and its existence may be inferred from all the circumstances. It need not have been reached at any time

before the crime is committed. The circumstances in which two or more persons are participating together in the commission of a particular crime may themselves establish an unspoken understanding or arrangement amounting to an agreement formed between them then and there to commit that crime.

- (3) A person participates in that joint criminal enterprise either by committing the agreed crime itself or simply by being present at the time when the crime is committed, and (with knowledge that the crime is to be or is being committed) by intentionally assisting or encouraging another participant in the joint criminal enterprise to commit that crime. The presence of that person at the time when the crime is committed and a readiness to give aid if required is sufficient to amount to an encouragement to the other participant in the joint criminal enterprise to commit the crime.
- (4) If the agreed crime is committed by one or other of the participants in that joint criminal enterprise, all of the participants in that enterprise are equally guilty of the crime regardless of the part played by each in its commission.

Approved:

Osland v The Queen (1998) 197 CLR 316; 159 ALR 170 at [73] per McHugh J.

In *R v Lowery and King (No 2)* [1972] VR 560 the victim was tied up and strangled. Each accused said he was present and part of the planning but that the other did the act. Smith J directed the jury on acting in concert (at 561):

For people to be acting in concert in the commission of a crime their assent to the understanding or arrangement between them need not be expressed by them in words their actions may be sufficient to convey the message between them that their minds are at one as to what they shall do. The understanding or arrangement need not be of long standing; it may be reached only just before the doing of the act or acts constituting the crime. Remember, however, that before a person can be found guilty of a crime under this doctrine he must have been present when it was committed and the crime committed must not go beyond the scope of the understanding or arrangement. On the other hand, it is to be remembered that under this doctrine, although the understanding or arrangement must not have been called off before the commission of the crime, the mere facts that while it is being committed one of the persons acting in concert feels qualms or wishes he had not got himself involved or wishes that it were possible to stop the proceedings and still get off Scot free, will not amount to a calling off of the undertaking or arrangement.

This doctrine of acting in concert applies to the crime of murder as to other crimes and the first way, the primary way, in which the Crown puts its case against each of these two accused persons is that the evidence admissible against each of them shows beyond all reasonable

doubt that the girl was murdered by the acts of one or the other or both of them while they were both present acting in concert to kill her.

[3.5110] Presence

It is not necessary that a person be present at the scene of the crime to be acting in pursuit of a common purpose with others who are present: *Johns v The Queen* (1980) 143 CLR 108; 28 ALR 155.

In *McAuliffe v The Queen* (1995) 183 CLR 108; 79 A Crim R 229; 130 ALR 26 two brothers went to a park with a man named Matthew Davis. They intended to bash someone. One of the two victims was so badly injured that he rolled off the cliff onto a ledge, then from the ledge to his death on rocks. To complete the quotation which introduced this section, the court said in a joint judgment (at 113–114; 29–30; 232–233):

The doctrine of common purpose applies where a venture is undertaken by more than one person acting in concert in pursuit of a common criminal design. Such a venture may be described as a joint criminal enterprise. Those terms – common purpose, common design, concert, joint criminal enterprise – are used more or less interchangeably to invoke the doctrine which provides a means, often an additional means, of establishing the complicity of a secondary party in the commission of a crime. The liability which attaches to the traditional classifications of accessory before the fact and principal in the second degree may be enough to establish the guilt of a secondary party: in the case of an accessory before the fact where that party counsels or procures the commission of the crime and in the case of a principal in the second degree where that party, being present at the scene, aids or abets its commission (See *Giorgianni v The Queen* (1985) 156 CLR 473; 16 A Crim R 163; 58 ALR 641). But the complicity of a secondary party may also be established by reason of a common purpose shared with the principal offender or with that offender and others. Such a common purpose arises where a person reaches an understanding or arrangement amounting to an agreement between that person and another or others that they will commit a crime. The understanding or arrangement need not be express and may be inferred from all the circumstances. If one or other of the parties to the understanding or arrangement does, or they do between them, in accordance with the continuing understanding or arrangement, all those things which are necessary to constitute the crime, they are all equally guilty of the crime regardless of the part played by each in its commission (cf *R v Lowery and King. (No 2)* [1972] VR 560 at 560 per Smith J).

(at 113–114; 29–30; 232–233).

See also

Common purpose at [\[3.3500\]](#); and **Joint enterprise** at [\[10.500\]](#).

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